

Defendant Zubiari Sadiz and ROES 1-20 is granted.

8. 9:00 AM CASE NUMBER: C25-00585
CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: ANTIOCH DUNES HEALTHCARE, LLC
TENTATIVE RULING:

Introduction

Before the Court is Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute's ("Defendant" or "Delta View") motion for an order compelling binding arbitration of all disputes between Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually and the Defendants, on the grounds that there is a contractual agreement to arbitrate such disputes. Additionally, Defendant requests that the Court stay the instant action as to all Defendants. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

For the reasons described below, Antioch Dunes Healthcare, LLC dba Delta View Post Acute's Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On March 3, 2024, Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually, filed a Complaint for Damages against Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute for the following causes of actions: 1. Statutory Elder Abuse/Neglect; 2. Negligence; 3. Violation of Health & Safety Code § 1430; and 4. Wrongful Death. (Declaration of Herman Singh (hereinafter "Singh Decl."), ¶ 2, Ex. A.)

Between March 17, 2025, and March 27, 2025, Defense counsel met and conferred with Plaintiffs' counsel regarding the existence of a valid arbitration agreement. In subsequent communications, counsel for the parties were unable to come to an agreement regarding the propriety of arbitration in this matter. (Singh Decl., ¶ 3.)

Plaintiff filed their Complaint on March 3, 2025. Defendant promptly filed its Petition to Compel Arbitration on April 4, 2025. (Request for Judicial Notice No. 1; Singh Decl., ¶ 4.) Defendant notified Plaintiff that Defendant would be withdrawing and refileing the Petition on August 1, 2025, and refiled the Petition on August 8, 2025. (RJN No. 1; Singh Decl., ¶ 7.) No discovery or any pursuit of litigation occurred during the seven days it took to refile the Motion to Compel Arbitration.

Factual Background

This case involves numerous allegations of neglect suffered by plaintiff Victor Martinez (hereinafter "Plaintiff" or "Mr. Martinez") while he resided at defendant skilled nursing facility Antioch Dunes

Healthcare, LLC dba Delta View Post Acute (hereinafter “Delta View”) from March 27, 2024, to April 17, 2024. Specifically, Plaintiffs allege Defendant Delta View neglected Decedent and allowed him to suffer several pressure sores and failed to supervise him leading to him suffering aspiration pneumonia and dehydration, causing septic shock. Decedent was unable to recover from these injuries and died prematurely. Decedent was initially admitted to Delta View for a five-day respite care stay, from September 7, 2023, to September 12, 2023. At that time, there were no plans for him to be readmitted to Delta View, and he was discharged to a family member’s home where he remained until he was hospitalized on March 22, 2024. Decedent was then transferred from the hospital to Delta View, and it is this March-April 2024 admission that gives rise to the facts of this case.

On August 19, 2016, Victor Martinez executed a Durable Power of Attorney for Financial Management granting Lissette D. Raygoza and Carmen J. Martinez, jointly, and independently, authority to make significant decisions of his behalf. (Declaration of Sabrina Carrasco (Carrasco Decl.), ¶ 5, Ex. A, p. 2, ¶ 3.) The authority became effective immediately and was not contingent of finding of mental incapacity or mental infirmity. (Carrasco Decl., ¶ 5, Ex. A, p. 3, ¶ 7.) Amongst other things, this power of attorney document authorized Ms. Raygoza to take the following actions:

8. Powers of Attorney-in-fact My Attorney-in-fact will have the following power(s): [...]

f. Claims and Litigation Matters To institute, maintain, defend, compromise, arbitrate or otherwise dispose of, any and all actions, suits, attachments or other legal proceedings for or against me. This power includes, but is not limited to, the power to: appear on my behalf, and the power to settle any claim against me in whichever forum or manner my Attorney-in-fact deems prudent, and to receive or pay any resulting settlement. [...]

q. First Additional Power I grant my power of attorney to make my decisions on who caregivers for me, signatures and financial needs. I also want my power of attorney to be my spokesperson.

(Carrasco Decl., ¶ 5, Ex. A, p. 5, ¶ f; p. 8, ¶ q.)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Cal. Teachers Ass’n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“Rosenthal”).)

If the existence of the arbitration agreement is challenged, “the burdens of production shift in a three-step process.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the moving

party meets its burden of proving the existence of a written agreement to arbitrate the dispute but the opposing party disputes the existence of a valid agreement, “then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Id.) The opposing party meets its burden in several ways, that may include “testify[ing] under oath or declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Id.) “If the opposing party meets its burden, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (Id.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id.)

Throughout this process, “[t]he trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) Notwithstanding the burden-shifting that may occur to produce evidence, “[t]he burden of persuasion is always on the moving party to prove the existence of an arbitration agreement by a preponderance of the evidence.” (*Gamboa*, 72 Cal.App.5th, at 164-165.)\

Analysis

Defendant’s Initial Burden

For arbitration to be compelled, the Court need only determine that (1) a valid agreement to arbitrate exists; and (2) the agreement to arbitrate encompasses the dispute at issue. (*Howsam v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.)

Here, Defendant Delta View provides copies of the 2023 Arbitration Agreement. (RJN Singh Sanctions Decl. Ex. B.)

Defendant asserts that the scope of the Arbitration Agreements was, “It is understood that any and all other disputes, controversies, demands, or claims that relate or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action, including, but not limited to, the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Act, the Consumer Legal Remedies Act, and Health & Safety Code Section 1430, will be determined by submission to arbitration as provided by the F.A.A.” between Defendant Delta View and each employee. (Motion pp 4-5; citing Carrasco Decl., ¶ 9 Ex. D, ¶ 1-2.)

Defendant Delta View has met its initial burden to establish the existence of the Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Applicability of September 2023 Arbitration Agreement to the March 2024 Stay

Health and Safety Code 1599.651 provides, a person that is readmitted into a skilled nursing facility does not have to resign an admissions agreement but can sign a written statement which lists modifications to the previous admissions agreement. Plaintiff specifically brings up that this rule does not apply to “any person when the physician and surgeon of that person has determined that the

person is unable to understand and sign the written statement because of his or her medical condition.” (Oppo at p. 3: 15-22.) Plaintiff mentions that Health & Safety Code ¶1599.81(b) states, “[a]ll arbitration clauses shall be included on a form separate from the rest of the admission contract.”

Health and Safety Code § 1599.651 governs the signing of contracts of admissions to the same facility where the patient had previously signed a contracts of admissions, while Health and Safety Code § 1599.81 addresses the presentation and execution of arbitration agreements at the time of initial admission, ensuring they are optional and separate from the admission agreement. (Health & Saf. Code, §§ 1599.651, 1599.81.)

Plaintiffs take the stance that a new admissions agreement had to be presented to Mr. Martinez’s legal representative upon his new admission, required Defendant to present another arbitration agreement to Plaintiff when he was admitted to the facility six months later. Plaintiff cites no authority holding that a previously executed arbitration agreement becomes void merely because a facility did not present a duplicate form at a later admission. In other words, the executed arbitration agreement applies to all care and services Mr. Martinez received from the facility.

Arbitrability of Wrongful Death Claim

Plaintiffs argue that because Carmen Martinez, Decedent’s surviving sibling who did not sign any arbitration agreement, is pursuing a wrongful death claim, she cannot be compelled to arbitration under *Holland*. (Oppo at p. 4: 10-24.) The Court is not swayed considering the express language in the subject Arbitration Agreement.

Procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement. (See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922 [even where agreement specifies FAA governs any disputes, CAA governs procedures where there is a choice of law provision providing that the agreement will be governed by the laws of California].) The California Supreme Court held that parties to an arbitration agreement may, “expressly designate that any arbitration proceeding should move forward under the [F.A.A.’s] procedural provisions rather than under state procedural law.” (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Ca1.4th 376, 394.)

Here, Paragraph 2 of the Agreement specifically states, “It is understood that any and all other disputes, controversies, demands, or claims that relate to or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action, including but not limited to, the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Act, the Consumer Legal Remedies Act, and Health & Safety Code Section 1430, will be determined by submission to arbitration as provided by the F.A.A.” (Carrasco Decl., Ex. D, ¶ 2.)

The subject Arbitration Agreement also takes the belt and suspenders approach by not only containing a choice of law provision expressly choosing the FAA procedural rules; the Arbitration Agreement also contains a provision that expressly states that California Code of Civil Procedure (“CCP”) shall not govern this Agreement and expressly excludes CCP § 1281.2(c) from the Agreement. (Carrasco Decl., Ex. D, ¶¶ 4-5.)

A motion to compel arbitration is in essence a suit in equity to compel specific performance of a

contract. Here, the Parties expressly agreed that the FAA procedural rules govern the Arbitration Agreement and expressly agree to the exact causes of actions pleaded shall be subject to arbitration. The Court intends to uphold the Arbitration Agreement which the Parties mutually assented to.

Waiver

On April 4, 2025, defendant Delta View filed a Petition to Compel Arbitration. Plaintiffs filed their opposition on July 28, 2025. On July 30, 2025, Defendant's Counsel emailed that they were going to withdraw the opposition considering the novelty of the arguments made in Plaintiff's Opposition. On August 1, 2025, defendant filed a Notice of Withdrawal. On August 8, 2025, Defendant refiled its Petition to Compel Arbitration, which was then scheduled to be heard on December 19, 2025

Defendants acknowledge that refileing the Petition resulted in some delay. However, taking corrective procedural steps to ensure the Court received complete and accurate supporting evidence does not, by itself, constitute waiver. Neither does the act of refileing, for the purpose of properly presenting the arbitration issues. Defendant's withdrawal of its motion to because of new arguments not discussed in the Parties meet and confer efforts, and refileing its motion seven days after withdrawal does not rise to the level of clear and convincing evidence required to establish that Defendants knowingly and intentionally relinquished their contractual right to arbitrate. Ensuring that the Court is properly briefed on the matter before it and refileing of a motion to proceed in the proper forum is consistent with preserving, not abandoning, the right to arbitration.

Authentication of Decedent's Power of Attorney Raygoza's Electronic Signature

A party opposing arbitration by challenging the authenticity of his or her signature "need not *prove* that his or her purported signature is not authentic but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Lissette Raygoza, the niece of Victor Martinez and Victor Martinez's authorized agent since 2016, in her declaration states that she does, "...not recognize the signature on the arbitration agreement as [hers]. Based on [her] review, [she] believe[s] [her] signature was forged on this document or that this document was snuck into a pile of admission paperwork without any explanation to [her] of what the document was." (Moore Decl., Ex. D Raygoza Decl. at ¶ 6.)

The Court is a bit puzzled about Ms. Raygoza's concern that her signature was forged or that a document was snuck into a pile of paperwork because the arguments seem to apply to a wet signature while the signature at issue is an electronic one.

Regardless, the Court will continue the analysis as if Plaintiff shifted the burden back to Defendant Delta View to authenticate Plaintiff's electronic signature.

2023 Arbitration Agreement

A proponent seeking to authenticate an electronic signature must show the electronic signature "'was the act of the person,'" which could be shown "'in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.'" (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843,

italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53; citing *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062.)

The evidence here exceeds what courts have deemed sufficient for authentication. Under California law, authentication is satisfied where the signer is the only person with access to the login credentials used to execute the document. Cases have upheld authentication based solely on access to a unique username and password. Here, not only was access restricted to Ms. Raygoza's personal email account, but the system required entry of a unique SMS verification code sent to Ms. Raygoza's personal cell phone. (Carrasco Decl., ¶ 7.) The record shows Ms. Raygoza actively confirmed her correct phone number with Ms. Carrasco in the middle of the signing process, prompting issuance of a new authentication code before she could continue signing. (*Id.*)

Plaintiff does not offer any evidence from Ms. Raygoza herself disputing the authenticity of the signature. Nowhere in Ms. Raygoza's declaration does she claim that the email address used for the OneSpan execution was not her email address, nor does she contend that anyone other than herself had access to that account. Likewise, she does not claim that the phone number to which the SMS verification codes were sent was not her phone number, nor does she state that any other individual had access to her device or her text messages.

The Court finds that Ms. Carrasco's Declaration explaining the two step authentication process that Ms. Raygoza went through to affix her electronic signature was sufficient for Defendant to prove by the preponderance of the evidence the authenticity of Ms. Raygoza's signature.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Under the CAA, courts "may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding." (CCP § 1281.2.) In other circumstances, when a court "has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State," the court "shall ... stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate." (Code of Civil Procedure § 1281.4.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v.*

Isbrandtsen Co. (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”). Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

Conclusion

Based on the analysis above, Antioch Dunes Healthcare, LLC dba Delta View Post Acute’s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

9. 9:00 AM CASE NUMBER: C25-01013
CASE NAME: DYAMON KILLENS VS. YAQUELIN REYES
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GUARDIAN/KW HILLTOP, LLC
TENTATIVE RULING:

Defendant Guardian/KW Hilltop, LLC’s demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiffs shall have 30 days from service of notice of entry to file an amended complaint, if any.

Background

Plaintiffs Dyamon Killens and Justin Ericsson’s First Amended Complaint (FAC) is based on allegations that certain uninhabitable conditions, including water intrusion and damage, existed during their tenancy at 3400 Richmond Parkway, Apt. 2720, Richmond, California.

Plaintiffs allege they entered into a residential lease agreement for the premises with defendant Guardian/KW Hilltop, LLC on December 16, 2022. Plaintiffs further allege that the alleged uninhabitable conditions in the premises led to, among other things, their alleged wrongful eviction. On April 10, 2025, Plaintiffs filed a complaint against defendants KW, FPI Management, Inc. and Yaquelin Reyes. Following the parties’ meet and confer efforts, Plaintiffs filed the FAC on June 20, 2025, alleging (1) Negligence; (2) Wrongful Eviction; (3) Tenant Harassment in Violation of the Richmond Rent Ordinance; (4) Breach of Contract (against KW); (5) Nuisance; (6) Unfair Business Practices (against KW and defendant FPI Management, Inc.); (7) Trespass; (8) Retaliatory Eviction; and (9) Declaratory and Injunctive Relief.

Guardian/KW Hilltop, LLC (KW) now demurs to the fifth, seventh, and ninth causes of action for failure to state facts sufficient to constitute a cause of action under CCP section 430.10(e).

Standard